
MEMORANDUM

TO: Mayor Patrick Collins, and City Council
FROM: TJ Barttelbort, Purchasing Manager 
DATE: June 4, 2025
SUBJECT: Consideration of Bid #E-21-25 for an Agreement between the City of Cheyenne and ABM Industry Groups, LLC, for Janitorial Services for City of Cheyenne – Cheyenne Municipal Court

Five (5) bidders responded to this bid, and the bid tabulation is attached. The Bids were received from:

1. ABM Industry Groups, LLC
2. KG Clean, Inc. dba KG Facility Solutions
3. Kleen-Tech Services, LLC
4. *McCall Cleaners LLC*
 - a. This bid has been rejected, due to failure to provide an adequate Bid Guarantee.
5. Top Flight Maintenance

The Bid was solicited for four (4) separate facilities, with the City awarding the bid to the lowest cost bidder - by facility.

The bids were reviewed by Steve Gaer (Facilities), Vicki Nemecek (Public Works), and Craig LaVoy (Public Works), and their recommendation is to accept the lowest responsive bid from ABM Industry Groups, LLC.

The term of this Agreement shall not exceed a period of five (5) years, beginning with a three (3) year term, with the option to renew for two (2) additional one (1) year periods. The total Bid Award for this facility, for all five (5) years is \$91,926.72.

Funding: General Fund / Maintenance

				ABM Industry Groups, LLC	KG Clean, Inc. dba KG Facility Solutions	Kleen-Tech Services, LLC	Top Flight Maintenance	Previous Term Rates	% Increase
Line Item	Description	Quantity	Unit of Measure	Unit Cost	Unit Cost	Unit Cost	Unit Cost		
1.1	Cheyenne Public Safety Center	12	Monthly	\$6,436.26	\$9,179.62	\$4,218.00	\$5,564.00	\$ 5,425.00	-22%
1.2	Cheyenne Municipal Building	12	Monthly	\$4,196.23	\$6,195.00	\$4,139.00	\$4,933.00	\$ 3,825.41	8%
1.3	Cheyenne Municipal Court	12	Monthly	\$1,442.90	No Bid	\$1,721.00	\$3,031.00	\$ 1,266.91	14%
1.4	Youth Alternatives	12	Monthly	\$1,200.77	No Bid	\$604.00	\$1,384.00	\$ 1,114.50	-46%
1.5	Academic Support and Enrichment Center	1	Each	\$56.77	No Bid	\$21.00	\$50.00	\$ 50.00	-58%
				ABM Industry Groups, LLC	KG Clean, Inc. dba KG Facility Solutions	Kleen-Tech Services, LLC	Top Flight Maintenance	Previous Term Rates	% Increase
Line Item	Description	Quantity	Unit of Measure	Unit Cost	Unit Cost	Unit Cost	Unit Cost		
2.1	Cheyenne Public Safety Center	12	Monthly	\$6,629.35	\$9,455.00	\$4,323.45	\$5,731.00	\$4,218.00	3%
2.2	Cheyenne Municipal Building	12	Monthly	\$4,322.12	\$6,380.85	\$4,242.48	\$5,081.00	\$4,139.00	3%
2.3	Cheyenne Municipal Court	12	Monthly	\$1,486.19	No Bid	\$1,764.03	\$3,122.00	\$1,442.90	3%
2.4	Youth Alternatives	12	Monthly	\$1,236.79	No Bid	\$619.10	\$1,425.00	\$604.00	3%
2.5	Academic Support and Enrichment Center	1	Each	\$58.47	No Bid	\$21.53	\$51.50	\$21.00	3%
				ABM Industry Groups, LLC	KG Clean, Inc. dba KG Facility Solutions	Kleen-Tech Services, LLC	Top Flight Maintenance	Previous Term Rates	% Increase
Line Item	Description	Quantity	Unit of Measure	Unit Cost	Unit Cost	Unit Cost	Unit Cost		
3.1	Cheyenne Public Safety Center	12	Monthly	\$6,828.23	\$9,738.65	\$4,431.54	\$5,903.00	\$4,323.45	3%
3.2	Cheyenne Municipal Building	12	Monthly	\$4,451.78	\$6,572.27	\$4,348.54	\$5,233.00	\$4,242.48	2%
3.3	Cheyenne Municipal Court	12	Monthly	\$1,530.77	No Bid	\$1,808.13	\$3,215.00	\$1,486.19	3%
3.4	Youth Alternatives	12	Monthly	\$1,273.90	No Bid	\$634.58	\$1,468.00	\$619.10	3%
3.5	Academic Support and Enrichment Center	1	Each	\$60.23	No Bid	\$22.07	\$53.00	\$21.53	3%
				ABM Industry Groups, LLC	KG Clean, Inc. dba KG Facility Solutions	Kleen-Tech Services, LLC	Top Flight Maintenance	Previous Term Rates	% Increase
Line Item	Description	Quantity	Unit of Measure	Unit Cost	Unit Cost	Unit Cost	Unit Cost		
4.1	Cheyenne Public Safety Center	12	Monthly	\$7,033.08	\$10,030.81	\$4,542.33	\$6,080.00	\$4,431.54	3%
4.2	Cheyenne Municipal Building	12	Monthly	\$4,585.33	\$6,769.44	\$4,457.25	\$5,390.00	\$4,348.54	2%
4.3	Cheyenne Municipal Court	12	Monthly	\$1,576.70	No Bid	\$1,853.33	\$3,312.00	\$1,530.77	3%
4.4	Youth Alternatives	12	Monthly	\$1,312.11	No Bid	\$650.45	\$1,512.00	\$634.58	3%
4.5	Academic Support and Enrichment Center	1	Each	\$62.03	No Bid	\$22.61	\$54.50	\$22.07	2%
				ABM Industry Groups, LLC	KG Clean, Inc. dba KG Facility Solutions	Kleen-Tech Services, LLC	Top Flight Maintenance	Previous Term Rates	% Increase
Line Item	Description	Quantity	Unit of Measure	Unit Cost	Unit Cost	Unit Cost	Unit Cost		
5.1	Cheyenne Public Safety Center	12	Monthly	\$7,244.07	\$10,331.73	\$4,655.89	\$6,263.00	\$4,542.33	3%
5.2	Cheyenne Municipal Building	12	Monthly	\$4,722.89	\$6,972.52	\$4,568.68	\$5,552.00	\$4,457.25	2%
5.3	Cheyenne Municipal Court	12	Monthly	\$1,624.00	No Bid	\$1,899.66	\$3,411.00	\$1,576.70	3%
5.4	Youth Alternatives	12	Monthly	\$1,351.48	No Bid	\$666.71	\$1,558.00	\$650.45	2%
5.5	Academic Support and Enrichment Center	1	Each	\$63.90	No Bid	\$23.18	\$56.25	\$22.61	3%

City Contract No. _____

PROFESSIONAL SERVICES AGREEMENT
for
JANITORIAL SERVICES FOR CITY OF CHEYENNE – CHEYENNE MUNICIPAL COURT

This Professional Services Agreement (“Agreement”) is made and entered into by and between the City of Cheyenne, located at 2101 O’Neil Avenue, Cheyenne, Wyoming 82001 (“City”), and ABM Industry Groups, LLC, located at 3511 Highway 310, Fromberg, Montana 59029 (“Contractor”). This Agreement shall become effective upon the date of the last signature affixed hereto.

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK

The Contractor agrees to provide services as described for the Janitorial Services for City of Cheyenne – Cheyenne Municipal Court, in accordance with City of Cheyenne Bid E-21-25, incorporated herein by reference, and the Contractor’s submitted bid, incorporated herein by reference.

2. TIME OF PERFORMANCE

The work included in this Scope of Work will be completed by June 30, 2028.

3. COMPENSATION

In consideration of the services to be performed pursuant to this Agreement, the Contractor will bill the City and the City agrees to pay Contractor as follows:

Initial Three (3) Year Term, includes:

Year 1 (July 2025 - June 2026), seventeen thousand, three hundred fourteen dollars, and eighty cents (\$17,314.80), Year 2 (July 2026 - June 2027), seventeen thousand, eight hundred thirty-four dollars, and twenty-eight cents (\$17,834.28), Year 3 (July 2027 - June 2028), eighteen thousand, three hundred sixty-nine dollars, and twenty-four cents (\$18,369.24).

One (1) Additional Year Renewal, includes: Year 4 (July 2028 - June 2029), eighteen thousand, nine hundred twenty dollars, and forty cents (\$18,920.40).

One (1) Additional Year Renewal, includes: Year 5 (July 2029 - June 2030), nineteen thousand, four hundred eighty-eight dollars (\$19,488.00)

4. CONTRACTOR RESPONSIBILITY

In providing services under this Agreement, the Contractor shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Contractor, the Contractor will, without additional compensation, correct those services not meeting such a standard.

5. COMPLIANCE WITH LAWS

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

6. DRUG-FREE WORKPLACE

In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers, and other Contractors under contract with City of Cheyenne, and their employees and sub-Contractors, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Contractor while performing the duties and responsibilities of the Agreement. It is the responsibility of the Contractor to familiarize themselves with the requirements of this policy and to inform all their employees and sub-Contractors of the requirements and ensure their compliance. If the Contractor, their employees, or sub-Contractors are found in violation of this policy, the Agreement may be terminated.

7. INDEMNIFICATION/HOLD HARMLESS

The Contractor agrees to indemnify, hold harmless, and defend the City from and against any and all liabilities, claims, penalties, forfeitures, and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result the performance of the Contractor's duties, including death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations, or orders to the extent caused by (1) the Contractor's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error, or omission by the Contractor, or its employees or sub-Contractors in the performance of this Agreement. The Contractor acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

8. INSURANCE REQUIREMENTS

The Contractor must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness, or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Contractor shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Contractor shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Contractor's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Contractor shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Contractor begins the provision of services under this Agreement; and
- b. In the event the Contractor's services extend into a future policy period, the Contractor shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Contractor will provide services under this Agreement; and
- c. Contractor shall maintain said "claims made" coverage for a period of five (5) years following the last date that Contractor has provided services under this Agreement; and
- d. In the event the Contractor or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Contractor shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Contractor has provided services under this Agreement.

Additional Insurance Information

The Contractor shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers' compensation and professional liability insurance policies.

Contractor shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Contractor to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Contractor shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Contractor's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

9. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin, or sex.
10. MONTHLY REPORT
With every monthly billing, the Contractor shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
11. INDEPENDENT CONTRACTOR
The Contractor shall function as an independent Contractor for the purposes of this Agreement. The Contractor shall assume sole responsibility for any debts or liabilities that may be incurred by the Contractor in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Contractor or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.
12. TAXES
The Contractor agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by and in connection with its operations under this Agreement.
13. DEFAULT
Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

14. REMEDIES

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
- b. Treat the Agreement as continuing and require specific performance.

15. TERM AND TERMINATION

The term of this Agreement shall not exceed a period of five (5) years, beginning with the initial three (3) year term, with the option to renew for two (2) additional one (1) year periods. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty (30) days' written notice to the Contractor, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Contractor shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Contractor in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Contractor for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Contractor fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Contractor. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law,

enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Contractor or its sub-Contractors. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and Contractors on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. OWNERSHIP OF DOCUMENTS AND WORK PRODUCT

All deliverables by the Contractor, all work product of the Contractor, all notes, calculations, memoranda, or any other documentation generated by the Contractor pursuant to the scope of this Agreement, shall be the property of the City of Cheyenne and shall be provided to the City of Cheyenne immediately upon request.

21. NON-DISCRIMINATION

The Contractor shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

22. FORCE MAJEURE.

The performance of the Agreement by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. The Agreement may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other party.

23. PROFESSIONAL REGISTRATION

The Contractor shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

24. ENTIRETY OF AGREEMENT

This Agreement consisting of seven (7) pages, Invitation to Bid E-21-25, issued via OpenGov E-Procurement Portal, Addendum One (1), issued May 27, 2025 via OpenGov E-Procurement Portal, and the Contractor's submitted bid, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

City of Cheyenne

(SEAL)

By: _____
Patrick Collins, Mayor

Attest:

Kylie Soden, City Clerk

Date: _____

Contractor,
ABM Industry Groups, LLC

By: _____

Print Name: _____

Date: _____